

Illegal Transshipment Pilot

COMMERCIAL SOLUTIONS OPENING PILOT PROGRAM (CSOP) SOLICITATION
CSOP-BP-GS-26-0001



U.S. Customs and Border Protection

**ILLEGAL TRANSSHIPMENT PILOT
COMMERCIAL SOLUTIONS OPENING PILOT PROGRAM (CSOP)
GENERAL SOLICITATION
CSOP-BP-GS-26-0001**

March 31, 2026

Illegal Transshipment Pilot

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ILLEGAL TRANSSHIPMENT PILOT COMMERCIAL SOLUTIONS OPENING PILOT PROGRAM (CSOP) SOLICITATION

1.0 GENERAL INFORMATION

1.1 BACKGROUND

This is a procurement action using the commercial solutions opening (CSO) procedure in accordance with Section 880 of the National Defense Authorization Act (NDAA 880) for Fiscal Year 2017, Title VIII, §880 (Public Law 114-328), which was extended in December 2022 through 2027, and is subject to the limitations outlined in the Department of Homeland Security (DHS) Commercial Solutions Opening Pilot Program (CSOP) Guide. This procurement is part of the Department of Homeland Security (DHS)/Customs and Border Protection (CBP) CSOP and is being used to competitively procure innovative commercial items, technologies, and services.

CBP has developed this pilot program to be implemented outside the normal Federal Acquisition Regulation (FAR) requirements to engage traditional and non-traditional Government Contractors, including start-up companies and academia. This pilot program is intended to promote competition with a streamlined approach to address specific needs for innovative commercial items. This pilot program offers a range of advantages to open the field of competition so that the Government and taxpayers benefit from a large pool of solutions at a better cost and performance, including:

- General solicitation requiring only minimal corporate and technical information;
- Fast track vendor selection timelines;
- Preference for the vendor retaining core intellectual property.

CBP plays a critical role in the enforcement of trade regulations and the collection of customs revenue, positioning itself as the nation's second largest revenue collection agency. In Fiscal Year 2025, CBP successfully collected \$216.7 billion in duties, taxes, and fees, continuing a legacy of robust enforcement that has led to the collection of 99.5% of all customs tariff revenue owed to the U.S. since 1992.

Despite this high collection rate, unscrupulous importers continue to engage in deceptive practices to evade antidumping and countervailing duties, tariffs, and other trade regulations, harming compliant business and eroding the revenue base. Chief among these deceptive practices are illegal transshipment schemes, or the act of routing of goods through a third country to obscure their true country of origin and avoid higher tariffs.

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To combat illegal transshipment, CBP has intensified its enforcement efforts by leveraging advanced technology, data analytics, and partnerships with other federal agencies and industry partners. These measures aim to detect and prevent illegal transshipment and other illicit schemes, ensuring compliance with trade laws and protecting U.S. economic interests.

Under the Illegal Transshipment Pilot, CBP will explore whether Artificial Intelligence (AI) technology solutions offered by the private sector can help uncover illegal transshipment schemes at scale and with a high degree of accuracy. This technology demonstration presents opportunities for the private sector and CBP to identify enforcement efficiencies and maximize revenue collection.

2.0 PROJECT DESCRIPTION

CBP will assess the value of Artificial Intelligence (AI) driven commercial solutions that identify imports which pose a high risk for illegal transshipment. The development and implementation of these private sector solutions will enable CBP to explore how cutting-edge technologies may be leveraged to inform enforcement actions that prevent high-risk imports from entering the U.S. and/or lead to the identification of additional duties owed.

Vendors will deliver insights about illegal transshipment risk via referral packages to CBP. Referral packages shall articulate specific risk factors that vendors believe are indicative of illegal transshipment. Referral packages must also identify or be easily traced to imports that are in transit and have not yet arrived in the U.S. To support this requirement, vendors may choose to receive certain manifest information as described in the SOW. CBP will make manifest information available to vendors no later than 72 hours before imports are expected to arrive in the U.S.

Vendors will be given an opportunity to prove out the scalability and accuracy of their illegal transshipment solutions over the course of a no-cost, 180-day base period of performance. Scalability will be measured by the number of actionable referral packages vendors submit to CBP. Accuracy will be measured by the percentage of referral packages that lead to the prevention of high-risk imports from entering the U.S. and/or the identification of additional duties owed. CBP will have full discretion over which referral packages to investigate based on confidence levels, potential revenue impact, ongoing or previous enforcement actions, and resource availability. Only referral packages that CBP chooses to investigate and act upon will be factored into its assessment of accuracy.

Vendors who achieve the base period of performance milestones defined in the SOW may be invited to perform up to two option periods with CBP. If a vendor successfully achieves all of the base period performance thresholds, CBP may, in its discretion, exercise the first option period. If the first option period is exercised and the vendor successfully achieves the performance thresholds for option period 1, then CBP may, in its discretion, exercise the second option period. The proposed pricing for each respective option period must fall within the range of \$1,250,000 or less to be considered for award. Price proposals outside of this range will be deemed unacceptable.

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The solutions delivered under the Illegal Transshipment Pilot as outlined in the SOW must drive enhancements and efficiencies around targeting for illegal transshipment, maximizing the collection of revenue owed to the U.S., and allocation of CBP resources towards areas of highest revenue risk. The desired end state for this SOW is to identify AI-driven solutions that demonstrate the ability to accurately detect illegal transshipment at a rate of 90 percent or higher—all without exposure to law enforcement sensitive algorithms CBP's targeting models and other sensitive data sets. The results of this technology demonstration may inform an enterprise-wide, competitive procurement for AI-driven illegal transshipment detection tools.

Responses to this solicitation should: not exceed 20 pages; identify how the proposed services meet the objectives of this SOW; and include a sample referral package that articulates specific factors, data sources, and underlying AI-driven methodologies used to assess illegal transshipment risk.

Interested vendors must be willing and prepared to conduct demonstrations of their capabilities shortly after submitting written responses to this solicitation. At the conclusion of this procurement process, CBP may select several viable candidates to proceed with as part of this technology demonstration.

3.0 SOLUTION BRIEF SUBMISSION REQUIREMENTS

3.1 SUBMISSION REQUIREMENTS

There will be one submission window under this general solicitation (described below). Solution briefs are limited to a page count of 20 letter size pages (8.5" x 11") with a font type of Times New Roman and a minimum font size of 12pt. The subject of the e-mail must be titled "CSOP-BP-GS-26-0001 Solution Brief – Vendor/Submitter's Name".

Oral presentations, technical challenge/demonstrations or other written information may be requested by the government at the sole discretion of the Contracting Officer to supplement the written solution brief at any time before potential award. Any oral presentations or demonstrations requested will be coordinated with the Submitter and may be conducted by videoconference, in-person, or by video submission, at the government's discretion.

3.0.1 Submission Window:

All questions or requests for clarifications regarding this solicitation must be electronically submitted in writing no later than **3:00 pm Eastern Standard Time, April 7, 2026** to aristide.horugavye@cbp.dhs.gov, peter.a.giambone@cbp.dhs.gov &

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joshua.bedregal@cbp.dhs.gov. The subject of the e-mail must be titled “Request for Clarifications re: CSOP-BP-GS-26-0001.” Requests, questions, or comments which are time stamped after the question due date and time may not be accepted, nor receive a response from the Government, in the sole discretion of the CO.

Written solution briefs as described in section 3.2 of this solicitation must be submitted electronically by **3:00 pm Eastern Standard Time, April 24, 2026** to the following e-mail boxes: aristide.horugavye@cbp.dhs.gov, peter.a.giambone@cbp.dhs.gov & joshua.bedregal@cbp.dhs.gov.

3.2 WRITTEN SOLUTION BRIEF REQUIREMENTS

Solution briefs are limited to a total page count of twenty (20) letter size pages (8.5” x 11”).

3.2.1 CONTENT OF SOLUTION BRIEF

Section 1 - Compliance Questions (1 Page)

Please indicate your understanding and acknowledgement/confirmation that your proposed solution complies with the following requirements:

1. Confirm and clearly describe that the technology solution proposed is a commercial item/solution.
2. Confirm and clearly describe that the technology solution proposed is innovative or how the commercial solution is offered in an innovative manner. Within the meaning of the statute, innovative is defined as: “Any new technology, process, or method, including research and development, or any new application of an existing technology, process, or method.”
3. Confirm your willingness and preparedness to conduct 60-90 minute in-person demonstrations of your capabilities shortly after submitting written responses, if requested, and indicate what your demonstration would entail.
4. Confirm your understanding that at the conclusion of this procurement process, CBP may select several viable candidates to proceed with as part of a technical demonstration to assess the value of AI-driven commercial solutions that identify entities and U.S.-bound imports that pose a high risk for illegal transshipment.

Section 2 - Solution Briefing Questions (Up to 9 pages)

The written solution brief shall answer the following questions. Strict adherence to the page limits for each section as pages beyond the stated limit will not be considered for evaluation. Submit your responses in MS Word and Adobe PDF format.

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1. Please indicate how your solution is intended to address the needs described in the SOW. Be specific about any methodologies, required inputs/outputs, strengths, and risks. Quantify, if possible, how your solution could scale beyond a testing pilot to fulfill the operational needs described in the SOW.
2. Describe your technology and its potential relevance to the project description outlined. Specifically, CBP would like submitters to address the following information with their solution brief:
 - Technology to be applied, to include a detailed description of the hardware/software/system requirements providing the technical capability.
 - The proposed technology capabilities.
 - The discrete sources of information that will be used to generate referral packages and the AI-driven methodologies used to assess illegal transshipment risk.
3. Describe experience providing these solutions to existing clients.
4. Will you be able to comply 100% with the Technical Compliance requirements in the SOW? If not, briefly justify any exception and the rationale to proceed.
5. Describe any AI-relevant experience working with the Federal Government and in CBP's specific mission space. If you have non-AI experience only, please describe the experience most relevant to this SOW.
6. What is your technique to creating unbiased, trustworthy AI systems or risk assessment models? What is your approach to building an explainable and transparent system?
7. How would you assess the resiliency of your capabilities when faced with adversarial attempts to misdirect or mislead your solution?
8. How are the AI algorithms evaluated?
9. What is the accuracy of any proposed AI capabilities?
10. Based on the scope laid out in the SOW, do you own all the rights to all the existing solutions you believe could be used to support the SOW?
11. What are the potential inherent risks in your proposed solution?
12. How long does it take your company to update software solutions to implement updated rules and regulations (E.g., executive orders)?

Section 3 – Sample Illegal Transshipment Referral Packages (Up to 10 Pages)

Please provide a sample referral package to demonstrate what you're proposing to deliver to CBP if selected to participate in the Illegal Transshipment Pilot. Your sample referral package must at a minimum:

1. Identify one or more entities and their affiliated imports that pose a high risk for illegal transshipment.
2. Provide specific factors that are indicative of illegal transshipment risk.
3. Describe the data sources and underlying AI-driven methodologies used to assess illegal transshipment risk.

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3.2.2 PROPRIETARY MARKINGS

Submitters must mark any pages of written solution brief that contain business plans, technical information, pricing or other business sensitive information as proprietary information, which the Government agrees to safeguard.

To ensure that sensitive data is appropriately marked by the Submitter, include the following sentences on the cover page: “This solution brief includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used or disclosed – in whole or in part – for any purpose other than to evaluate this submission. If, however, an agreement is awarded to this Company as a result of – or in connection with – the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting agreement. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets].”

Each restricted data sheet must be marked as follows: “Use or disclosure of all data contained on this sheet is subject to the restriction on the title page of this solution brief.”

4.0 EVALUATION OF SOLUTION BRIEFS

4.1 GENERAL

Pursuant to the authority of NDAA 880, CBP has been vested with procedural discretion to make multiple contract awards resulting from the evaluation and determination of viable technology solutions. Proposals shall be evaluated on their individual merits rather than on a comparative basis. **Besides the criterion described in section 4.2 below, all proposed solutions must clearly demonstrate how the commercial item is offered in an innovative manner.** Within the meaning of the statute, innovative is defined as:

“Any new technology, process, or method, including research and development, or any new application of an existing technology, process, or method.”

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Both the written solution brief and oral presentation, if applicable, will be evaluated against the evaluation criteria. Each solution brief submitted will be evaluated on its own merits against the evaluation criteria and will not be evaluated against other solution briefs in order to make an award determination. It is within the Government's discretion to accept more than one solution brief for an award resulting from this solicitation. The Government reserves the right to request oral presentations, technical demonstrations, or additional written information, if applicable, from one or more Submitters at any time during the solicitation period.

4.2 EVALUATION TIMELINE AND PHASES

The following table shows the Government's estimated evaluation schedule and different phases of evaluation.

Phase	Submission	Due Date
1	Solution Brief (Not to Exceed 20 Pages)	04/24/2026
1 (Optional)	Technical Demonstration &/or Oral Presentation	Upon notice
2	Full Proposal (Not to Exceed 25 Pages)	2 weeks from Notice or when requested by the Contracting Officer

Phase 1: The evaluation of this phase is described herein section 4.2 in the succeeding paragraphs above.

Phase 1 (Optional): Technical demonstrations or oral presentations may be conducted, but by invitation only. Invitations will only be extended to those Submitters who have been determined to be a potentially viable solution from the Phase 1 evaluation described here in section 4.2. The purpose of technical demonstrations shall be for the Submitter to validate their claims as proposed in the solution brief.

Phase 2: Proposed solutions determined to be viable in Phase 1 will be invited to submit a full proposal to further contract discussions and the potential formation of a resulting contract. Section 5.0 below describes the content required for a full proposal submission.

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4.2.1 PHASE 1 EVALUATION

The following evaluation criteria shall be used to evaluate the written solution brief and oral presentation. The evaluation criteria are listed below in order of importance from top to bottom.

Note: CBP will only make an award resulting from this general solicitation to a solution that provides an **innovative commercial item**, as defined in Section 4.1.

The evaluation of Criterion I, II, III, and optional Criterion IV, if necessary, will each be evaluated holistically with a rating scale of "high confidence," "some confidence," and "low confidence," representing the Government's confidence that the Submitter understands the requirement and will be successful in performing the work.

Confidence Level Rating	Definition
High Confidence	The Government has High Confidence that the Submitter understands the requirement, proposes a sound approach, and will be successful in performing a CSOP contract with little or no Government intervention.
Some Confidence	The Government has some confidence that the Submitter understand the requirement, proposes a sound approach, and will be successful in performing a CSOP Contract with little or no Government intervention.
Low Confidence	The Government has low confidence that the Submitter understands the requirement, proposes a sound approach, or will be successful in performing a CSOP Contract even with Government intervention.

- **Criterion I:** Capabilities Approach. Responsiveness and relevance to the project description. This includes the breadth of the responsiveness to desired solution (Trade Solution) the commercial item represents, including the assessed potential of the technology solution for addressing CBP's capability gaps provided in sections 1 and 2 of this solicitation, and solution methodology. The assessment will result in a Confidence Level Rating.
- **Criterion II:** Transition Approach. An assessment will be made regarding how the proposed technology/solution will be leveraged in CBP operations (e.g., commercialized or used by CBP). The assessment will determine the likelihood that the Submitter will be able to successfully support the deployment of a Trade Solution into the CBP operational

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environment to support the CBP user community. The assessment will result in a Confidence Level Rating.

- **Criterion III:** Submitter's Related Experience. The Submitter's prior experience (both Government and non-government) in similar efforts will be assessed to determine if the Submitter clearly demonstrates an ability to deliver solutions that meet the proposed technical performance. The assessment for this criterion will include evaluating any corporate viability requirements specified in the solicitation. The assessment will result in a Confidence Level Rating.
- **Optional Criterion IV (If requested):** Technical Challenge and/or Orals Presentation. An assessment will be made regarding the demonstration of proposed solution. This assessment will include the Submitter's understanding of the Government's Objectives and Outcomes and the likelihood of the Submitter successfully performing the prospective contract resulting in a Confidence Level Rating.

4.3 PEER REVIEW TEAM EVALUATION

A peer review team will be used to evaluate the solution briefs or optional technical challenge/oral presentations, if applicable, submitted in response to this solicitation. The peer review team will consist of U.S. Government and Contractor employees.

4.4 SOLUTION BRIEF EVALUATION AND NOTIFICATION TO SUBMITTERS

Solution briefs will be evaluated in accordance with the evaluation criteria defined in section 4.2. After evaluating the Submitter's written solution briefs, CBP will formally notify the Submitter whether an oral presentation or other supplemental information is requested to supplement the written solution brief, their solution brief was not selected for award, or the submitter is being advanced to participate in Phase II of this solicitation. Submitters not selected for award may request, within 5 calendar days of notification of non-selection, feedback regarding the technical review findings of their submitted solution brief.

4.5 TECHNICAL DEMONSTRATIONS/ORAL PRESENTATIONS

The Government reserves the right to request oral presentations, technical demonstrations, or additional written information, if applicable, from one or more Submitters. The Government is likely to conduct technical challenges/demonstrations and Oral Presentations as a follow-up evaluation to the solution briefs but is not required to in order to advance submitters on to the next solicitation phase or to make an award.

If Submitters are invited to conduct a technical demonstration, the Submitter shall provide and be responsible for all costs related to the labor, supervision, tools, materials, equipment, transportation, and management necessary for a technical demonstration to be conducted under this General Solicitation. This is just a preliminary notice to industry for what the contractor shall be responsible for in the event a vendor is requested to conduct a technical demonstration. This is

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not an exhaustive list of costs the submitter may be responsible for related to conducting technical demonstrations.

5.0 FULL PROPOSAL SUBMISSION (PHASE II)

5.1 GENERAL

When invited to proceed to Phase II by the Government after an evaluation of the Submitter's solution brief (and/or optional oral presentation/technical demonstration) in accordance with Section 4, the Government will request Submitters to develop and submit a full proposal. Companies may discuss ideas and details of the proposal with the Government prior to submission. Upon notice to proceed to Phase II, each proposal submitted shall consist of three sections responding to the Government's SOW:

- Section 1: Technical Information
- Section 2: Proposal Solution
- Section 3: Price Information

The cost of preparing proposals in response to this Request is not considered a direct charge to any resulting CSOP contract award or any other contract. Proposal preparation costs are not recoverable.

Proposals shall be limited to a page count of 25 letter size pages (8.5" x 11"), with a font type of times new roman and a minimum font size of 12pt. Submitters will be given further submittal instructions at the time of invitation.

5.2 TECHNICAL APPROACH

Describe the background and objectives of the proposed work. Include the nature and extent of the anticipated results. Discuss any risks and proposed mitigation strategy to address the risks. Include ancillary and operational issues such as certifications, algorithms, and any engineering/software development methodologies to be used. Identify the type of support, if any, the Company requests of the Government in general such as facilities, equipment, data, and information or materials.

5.3 PROPOSAL SOLUTION

The Submitter must submit a proposal solution as part of their final proposal that identifies the work to be performed and the deliverables. Provide a detailed project schedule that outlines the various phases of work to be accomplished within the proposed period of performance.

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5.4 PRICE INFORMATION

The Submitter must submit the total price to complete the project and shall provide any other data or supporting information that the parties agree is necessary for the determination of a fair and reasonable price. A milestone schedule shall be included which clearly indicates the completion of the priced tasks and/or priced deliverables that are required to meet each of the milestones. For Firm-Fixed-Price agreements, the milestone schedule will serve as a payment schedule for any subsequent award. The proposed pricing for each respective option period must fall within the range of \$1,250,000 or less to be considered for award. Price proposals outside of this range will be deemed unacceptable.

5.5 PHASE II EVALUATION

The PHASE II proposal submitted in response to this solicitation shall be evaluated on the following:

- Submitter's demonstrated understanding of the work to be performed and ability to meet the Government's requirements as stated in the solicitation, including the Statement of Work; and
- Price reasonableness, as determined by the Government to ensure that award is made at a fair and reasonable price. The Government may request supporting information to support a fair and reasonable determination of the submitter's price.

A contract may be awarded to a submitter whose proposal conforms to the requirements of the solicitation (to include all stated terms, conditions, representations, certifications, and all other information required by in other sections) and is judged to represent an acceptable technical/cost solution for the Government's requirements. The submitter must be considered responsible within the meaning of FAR RFO 9.104.

In addition to the specific evaluation criteria contained above in this section of the solicitation, the Contracting Officer will consider the following additional factors in the peer review selection process:

- a) The submitter must respond to all the requirements of the solicitation and must include in its proposal all information specifically required in all sections of the solicitation.
- b) Award of a contract cannot be made to any submitter unless an agreement can be secured for all stated terms, conditions, representations, certifications, and all other information required by the solicitation.
- c) Award of a contract can only be made to a submitter:
 - 1) Whose proposal is technically acceptable or represents the best value;

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- 2) Whose proposed price is determined reasonable; and
- 3) Who is considered to be responsible within the meaning of FAR RFO 9.104.

5.6 NOTIFICATION TO SUBMITTER DURING PHASE II

CBP will notify the Submitter whether their submission has been accepted for award, further negotiation is requested, or if the submission is not accepted for award. As the government may elect to issue multiple resultant awards, certain submitters may receive award notifications prior to others. While initial award(s) may be placed, other submitters may receive future awards as funding and government needs warrant. However, the Government is not required to make an award, and favorably rated submitters are not entitled to receive an award.

5.7 NEGOTIATION AND AWARD

Based on the Phase 1 & 2 evaluations, the government may enter directly into negotiations with each submitter to make a resultant award. The government is not obligated to enter into negotiations with every submitter.

6.0 PROTESTS TO THE AGENCY

Protests under CSOP awards shall be adjudicated as prescribed under CBP Agency-Level protest procedures only.

Protest submissions shall be sent via e-mail to Contracting Officer, Peter Giambone at peter.a.giambone@cbp.dhs.gov.

Submitters may seek assistance from the agency Advocate for Competition. The Department Advocate for Competition and Procuring Activity Advocates for Competition are shown on the Doing Business with DHS page, and is accessible at:

<https://www.dhs.gov/competition-advocates-and-task-order-and-delivery-order-ombudsman>.

7.0 INVOICES AND PAYMENT

7.1 ASSIGNMENT

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The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727).

7.2 PAYMENT AND INVOICE INSTRUCTIONS (APR 2014)

(a) The contractor shall submit an original invoice/voucher, via postal mail or electronic mail (email), simultaneously to the following:

- (1) U.S. Customs and Border Protection
Commercial Accounts Section
6650 Telecom Drive, Suite 100
Indianapolis, Indiana 46278

OR email: cbpinvoices@dhs.gov (Preferred)

- (2) Contracting Officer or Contract Administrator (CO or CA) [fill in at time of award]
DHS/U.S. Customs and Border Protection
Attention: [Contracting Officer Name]
Email: [Contracting Officer Email address]
Phone: [Contracting Officer Phone Number]
- (3) Contracting Officer's Representative (COR) or Point of Contact [fill in at time of award]
DHS/U.S. Customs and Border Protection
Attention: [COR or POC Name]
Email: [COR or POC Email address]
Phone: [COR or POC Phone Number]

(b) The invoice shall include a detailed report of all items and services invoiced for. The CO, in conjunction with the COR and NFC, will determine whether the invoice is proper or improper within seven (7) days of receipt. Improper invoices will be returned to the contractor within seven (7) days of receipt.

7.3 PAYMENTS

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7.3.1 GENERAL

The Government shall pay the Contractor 30 days after the service period, the prices stipulated in this contract for supplies delivered and accepted or services rendered and accepted, less any deductions provided in this contract.

Unless otherwise specified in the contract, the Government may make payment on partial deliveries accepted by the Government if either:

- The amount due on the deliveries warrants it.
- The Contractor requests it and the amount due on the deliveries is at least \$1,000 or 50 percent of the total contract price.

7.3.2 ADVANCE PAYMENTS

Advance payments are prohibited unless a statute specifically authorizes the advance payment.

7.3.3 OVERPAYMENTS

If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall:

- Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the:
 - Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
 - Affected contract number and delivery order number, if applicable;
 - Affected line item or subline item, if applicable; and Contractor point of contact.
- Provide a copy of the remittance and supporting documentation to the Contracting Officer.

7.3.4 INTEREST ON DEBT DUE TO GOVERNMENT BY THE CONTRACTOR

- All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.
- The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.
- Final decisions. The Contracting Officer will issue a final decision if:
 - The Contracting Officer and Contractor are unable to reach agreement on the

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- existence or amount of a debt within 30 days;
- The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or
- The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.
- If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.
- Amounts shall be due at the earliest of the following dates:
 - The date fixed under the contract.
 - The date of the first written demand for payment, including any demand for payment resulting from a default termination.
- The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on:
 - The date on which the designated office receives payment from the Contractor;
 - The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
 - The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

8.0 TERMS AND CONDITIONS

The terms and conditions defined throughout this section are applicable only to a resulting contract award as described in the preceding sections of this general solicitation.

8.1 SYSTEM FOR AWARD MANAGEMENT (SAM) REGISTRATION

Successful Submitters not already registered in SAM will be required to register prior to award of any contract. Information regarding SAM registration is available at <https://sam.gov>. See the following Quick Start Guide for specific guidance on SAM registration: https://www.sam.gov/sam/transcript/Quick_Guide_for_Contract-Registration.pdf. To remain registered in the SAM database after the initial registration, the Contractor is required to review and update on an annual basis from the date of initial registration or subsequently update its information to ensure it is current, accurate and complete.

The Contractor is responsible during performance and through final payment of any contract for the accuracy and completeness of the data within the SAM database, and for any liability resulting from the Government's reliance on inaccurate or incomplete data. The Contractor shall not change the name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims. Assignees shall be separately registered in the SAM database.

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If Contractor is authorized to make subawards under this award, Contractor:

- (1) Must notify potential subcontractors that no entity may receive a subcontract from Contractor unless the entity has provided its UEI number to Contractor.
- (2) May not make a subcontract to an entity unless the entity has provided its UEI number to Contractor; and
- (3) Contractor's financial records, supporting documents, statistical records, and all other records pertinent to an award shall be retained by the contractor for the term of the contract. The CO shall be allowed access to these records.

8.2 INTELLECTUAL PROPERTY

Intellectual property rights shall be negotiated prior to a resulting contract award with those submitters deemed to have submitted a successful proposal from Phase 2. The mutually agreed upon intellectual property terms and conditions shall be inserted into this section at the time of award.

8.3 RISK OF LOSS

Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

- Delivery of the supplies to a carrier, if transportation is Free on Board (FOB) origin, or
- Delivery of the supplies to the Government at the destination specified in the contract if transportation is FOB destination.

8.4 TAXES

The contract price includes all applicable Federal, State, and local taxes and duties.

8.5 TITLE

Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

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8.6 WARRANTY

In addition to any other warranties provided by the contractor, The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

8.7 LIMITATION ON LIABILITY

Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

8.8 OTHER COMPLIANCES

The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract. The contractor shall retain and maintain all records of performance, whether technical, business, and financial or other under this contract for a period of three years after the completion of this contract. Those records shall be maintained in a manner that will provide easy access, use, and search by representatives of the CO or the Government Accountability Office.

8.9 ORDER OF PRECEDENCE

Any inconsistencies in this solicitation and contract shall be resolved by giving precedence in the following order:

1. The schedule of supplies/services.
2. The clauses of this contract, which include but are not limited to, the Assignments, Disputes, Payments, Invoice, Other Compliances, Unauthorized Obligations, and Commercial Supplier Agreements – Unenforceable Clauses sections of this contract.
3. Solicitation provisions if this is a solicitation.
4. Addenda to this solicitation or contract, including any commercial supplier agreements as amended by the Commercial Supplier Agreements – Unenforceable Clauses section of this contract, unless in conflict with Section 8.11 of this Contract.
5. Other documents, exhibits, and attachments.
6. The specification.

8.10 UNAUTHORIZED OBLIGATIONS

8.10.1 Except as stated in Section 8.10.2, when any supply or service acquired under this contract is subject to any commercial supplier agreement that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees,

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or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

- Any such language, provision, or clause is unenforceable against the Government.
- Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.
- Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.

8.10.2 Section 8.10.1 does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

8.11 COMMERCIAL SUPPLIER AGREEMENTS – UNENFORCEABLE CLAUSES

When any supply or service acquired under this contract is subject to a commercial supplier agreement, the following language shall be deemed incorporated into the commercial supplier agreement. As used herein, “this agreement” means the commercial supplier agreement:

- Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:
 - Applicability. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument.
 - End User. This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.
 - Laws and Disputes. This agreement is governed by Federal law.
 - Any language purporting to subject the U.S. Government to laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.
 - Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted.
 - Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.
 - Continued Performance. The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach

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- of the agreement, it shall pursue its rights under applicable Federal statute while continuing performance as set forth below in this section.
- Arbitration; Equitable or Injunctive Relief. In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute.
 - Updating Terms.
 - After award, the contractor may unilaterally revise commercial supplier agreement terms if they are not material. A material change is defined as:
 - Terms that change Government rights or obligations;
 - Terms that increase Government prices;
 - Terms that decrease overall level of service; or
 - Terms to limit any other Government right addressed elsewhere in this contract.
 - For revisions that will materially change the terms of the contract, the revised commercial supplier agreement must be incorporated into the contract using a bilateral modification.
 - Any agreement terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this contract shall not be enforceable against the Government, and the Government shall not be deemed to have consented to them.
 - No Automatic Renewals. If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative approval.
 - Indemnification. Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.
 - Audits. Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:
 - Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice must comply with the proper invoicing requirements specified in the underlying Government contract or order.
 - This charge, if disputed by the ordering activity, will be resolved through the Disputes section of this contract.
 - Any audit requested by the Contractor will be performed at the Contractor's expense, without reimbursement by the Government.
 - Taxes or Surcharges. Any taxes or surcharges which the commercial supplier or licensor seeks to pass along to the Government as end user will be governed by the

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- terms of the underlying Government contract or order and, in any event, must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.
- Non-Assignment. This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval.
 - Confidential Information. If this agreement includes a confidentiality clause, such clause is hereby amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in this agreement to the contrary, the Government may retain any confidential information as required by law, regulation or its internal document retention procedures for legal, regulatory or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this agreement.
 - If any language, provision, or clause of this agreement conflicts or is inconsistent with Section 8.11, the language and provisions of Section 8.11 shall prevail to the extent of such inconsistency.

8.12 INCORPORATION BY REFERENCE

Any Contractor representations and certifications completed electronically via the System for Award Management (SAM) are incorporated by reference into the contract.

8.12.1 FAR CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE

- FAR Clause 52.203-16, PREVENTING PERSONAL CONFLICTS OF INTEREST (JUN 2020) (applies if conditions are met at FAR provision 3.1106(a))
- FAR Clause 52.203-17, CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (NOV 2023)
- FAR Clause 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (AUG 2025)(Deviation 25-23)
- FAR Clause 52.240-91 Security Prohibitions and Exclusions (AUG 2025)(Deviation 25-23)
- FAR Clause 52.222-50, COMBATING TRAFFICKING IN PERSONS (NOV 2021)
- FAR Clause 52.222-54, EMPLOYMENT ELIGIBILITY VERIFICATION (OCT 2025)(Deviation 26-10) (applies if conditions are met at FAR RFO provision 22.1802-2, unless any of the exceptions apply from FAR 22.1802-2 (a), (b), or (c))

Solicitation provisions listed herein will be removed from the resultant contract.

8.13 CHANGES

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Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

8.14 SUSPENSION AND TERMINATION PROCEDURES

8.15.1 The Government reserves the right to terminate the CSOP for cause or for convenience of the Government.

8.15.1.1 The CO may suspend performance of this contract at any time by providing written notice to the contractor. Upon receipt of such a notice, the contractor shall cease performance until the CO either (1) withdraws the suspension of work in writing or (2) notifies the contractor in writing of his or her intention to terminate this contract whether for convenience of the Government or for cause. If the suspension results in the incurrence of costs that the contractor was unable to avoid, the contractor may request an equitable adjustment in writing to the CO.

8.15.1.2 If the CO fails to provide further instructions within sixty (60) days from the notice to suspend work, this contract will be considered terminated for the convenience of the Government, and the contractor will cooperate with the Government with closing out the contract.

8.15.1.3 The CO may terminate this contract in whole or in part for the convenience of the Government at any time by written notice. The contractor shall then cease further performance and take all reasonable measures to minimize any further incurrence of costs.

8.15.1.4 If the contractor fails to comply with the terms and conditions of this contract, the CO will provide written notice of breach or deficiency to the contractor and will provide the contractor an opportunity to explain or correct the breach or deficiency within thirty (30) days from receipt of notice. As a result of any response by the contractor, the CO may (1) proceed with the termination for cause; (2) convert the termination to one for the convenience of the Government; or (3) direct the contractor to continue performance.

8.15.2 This contract may be terminated by the CO at the request of the contractor under the following conditions:

8.15.2.1 The contractor shall notify the CO at least 30 days prior to the termination requested effective date.

8.15.2.2 The notification shall state the reasons for the termination, the requested effective date, and, if a partial termination, the portion to be terminated. If the CO determines, in the case of a partial termination, that the reduced or modified portion of the award will not accomplish the purpose for which the award was made, the CO may terminate the award in its entirety.

8.15.3 The Government and the contractor will negotiate in good faith an equitable reimbursement for work performed for which the contractor has not received payment.

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8.16 DISPUTES

- a) This contract is subject to 41 U.S.C. Chapter 71, Contract Disputes.
- b) Except as provided in 41 U.S.C. Chapter 71, all disputes arising under or relating to this contract shall be resolved under this section.
- c) “Claim,” as used in this clause, means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payment of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this contract. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding \$100,000 is not a claim under 41 U.S.C. Chapter 71 until certified. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under 41 U.S.C. Chapter 71. The submission may be converted to a claim under 41 U.S.C. Chapter 71, by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.
- d) (1) A claim by the Contractor shall be made in writing and, unless otherwise stated in this contract, submitted within 6 years after accrual of the claim to the Contracting Officer for a written decision. A claim by the Government against the Contractor shall be subject to a written decision by the Contracting Officer.
 - (2) (i) The Contractor shall provide the certification specified in paragraph (d)(2)(iii) of this clause when submitting any claim exceeding \$100,000.
 - (ii) The certification requirement does not apply to issues in controversy that have not been submitted as all or part of a claim.
 - (iii) The certification shall state as follows: “I certify that the claim is made in good faith; that the supporting data are accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the Government is liable; and that I am authorized to certify the claim on behalf of the Contractor.”
- (3) The certification may be executed by any person authorized to bind the Contractor with respect to the claim.
- e) For Contractor claims of \$100,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor –certified claims over \$100,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.
- f) The Contracting Officer’s decision shall be final unless the Contractor appeals or files a suit as provided in 41 U.S.C. Chapter 71.
- g) If the claim by the Contractor is submitted to the Contracting Officer or a claim by the Government is presented to the Contractor, the parties, by mutual consent, may agree to use alternative dispute resolution (ADR). If the Contractor refuses an offer of ADR, the Contractor shall inform the Contracting Officer, in writing, of the Contractor’s specific reasons for rejecting the offer.
- h) The Government shall pay interest on the amount found due and unpaid from (1) the date

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that the Contracting Officer receives the claim (certified, if required); or (2) the date that payment otherwise would be due, if that date is later, until the date of payment. With regard to claims having defective certifications, as defined in FAR RFO 33.201, interest shall be paid from the date that the Contracting Officer initially receives the claim. Simple interest on claims shall be paid at the rate, fixed by the Secretary of the Treasury as provided in the Act, which is applicable to the period during which the Contracting Officer receives the claim and then at the rate applicable for each 6-month period as fixed by the Treasury Secretary during the pendency of the claim.

- i) The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

8.17 DEFINITIONS

When a solicitation provision or contract clause uses a word or term that is defined in the Federal Acquisition Regulation RFO (FAR), the word or term has the same meaning as the definition in FAR 2.101 in effect at the time the solicitation was issued, unless:

- The solicitation, or amended solicitation, provides a different definition; or
- The contracting parties agree to a different definition.

8.18 ADDITIONAL TERMS AND CONDITIONS

8.18.1 COMPLIANCE WITH APPLICABLE EXECUTIVE ORDERS

- i. “In compliance with Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity, dated January 21, 2025, the contractor agrees that its compliance in all respects with applicable Federal anti-discrimination laws is material to the government’s payment decisions for purposes of section 3729(b)(4) of title 31, United States Code; and, by virtue of submitting a quote/offer, the contractor certifies that it does not operate any programs promoting DEI that violate any applicable Federal anti-discrimination laws.”
- ii. “No requirement in this contract should conflict or contravene Executive Order 14154 “Unleashing American Energy” dated January 20, 2025. To the extent any requirement may conflict or contravene that Executive Order, the requirement is deemed inapplicable to this contract. The Contractor should consult with the CO on any such requirement they determine is inconsistent with the Executive Order, and work on proposed modifications to comply with the EO and statutory requirements.”
- iii. “In response to Executive Order 14275, Restoring Common Sense to Federal Procurement, signed April 15, 2025, the Department of Homeland Security (DHS) has

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implemented the Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) through a series of class deviations. DHS Class Deviations are publicly available at <https://www.dhs.gov/cpo-dhs-far-overhaul-deviations>. Any updates to the FAR made pursuant to the RFO and subsequently adopted by DHS via class deviation, at or before the time of award, shall be deemed adopted and become the controlling version of any FAR clause included in this contract.”

8.19 FOREIGN NATIONALS

- A. For purposes of this clause, foreign nationals are all persons not citizens of, not nationals of, nor immigrant aliens to, the United States of America. Nothing in this clause is intended to waive any requirements imposed by any other U.S. Government agency with respect to employment of foreign nationals or export control.
- B. The contractor acknowledges that the technical data generated under this contract may be subject to export control, including disclosure to foreign nationals, whether such data is provided orally or in written form.
- C. The contractor agrees to obtain written approval from the CO before assigning any foreign national to perform work under this contract or before granting foreign nationals access to data related to this contract, whether such data is provided by the Government or generated under this contract.

8.20 TERM OF THE CONTRACT

The term of this contract is 180 days from date of contract award, plus any options established through proposal discussions.

Nothing in this contract is intended to conflict with current law or regulation or the directives of the DHS. If a term of this contract is inconsistent with such authority, then that term shall be invalid, but the remaining terms and conditions of this contract shall remain in full force and effect.

8.21 CONTRACT TYPE

It is intended that any resulting contract from this solicitation shall be Firm Fixed Price.

8.22 OPTIONS

CBP may establish options for future purchasing requirements. Options shall be executed in accordance with terms established in the resulting CSOP contract.

8.23 TEST EQUIPMENT - CBP APPROVAL OF PROPOSED EQUIPMENT

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Any new technology not currently approved for use on the CBP network must be tested and approved prior to purchase. Award will be contingent upon review and approval of the CBP Chief Technology Officer (CTO). Products proposed in support of this requirement must either be currently authorized products on the CTO Technical Reference Model (TRM) or must undergo testing for approval on the TRM. Once an apparent successful offer is identified, and it is determined that any of the items are not on the TRM, the Contracting Officer will contact the vendor and arrange to have a unit shipped to CBP for testing. If the equipment is determined to be acceptable, the vendor will be informed that their equipment complies with CBP standards, and the order may then be executed. If the equipment is found to be unacceptable (not meeting CBP standards), CBP will return the test unit to the vendor, and the CO will continue to the next lowest priced offer. The Vendor shall provide a test unit to CBP preferably within seven (7) days of notification or a timeframe agreed upon between the vendor and CBP. The Vendor shall be responsible for the cost associated with shipping the test unit to CBP for testing and the return of the test unit if necessary.

8.24 CONTRACTING OFFICER'S AUTHORITY

The Contracting Officer (CO) is the only person authorized to approve changes in any of the requirements of this contract. In the event the Contractor effects any changes at the direction of any person other than the Contracting Officer, the changes will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in costs incurred as a result thereof. The Contracting Officer shall be the only individual authorized to accept nonconforming work, waive any requirement of the contract, or to modify any term or condition of the contract. The Contracting Officer is the only individual who can legally obligate Government funds. No cost chargeable to the proposed contract can be incurred before receipt of a fully executed contract or specific authorization from the Contracting Officer.

8.25 OPTION TO EXTEND THE TERM OF THE CONTRACT

The Government may unilaterally extend the term of this contract for the Option Year by written notice to the Contractor within 30 days of base period expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract base period expires.

The preliminary notice does not commit the Government to an extension. If the Government exercises this option, the extended contract shall be considered to include this option clause.

The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months from date of award.

8.26 OPTION FOR INCREASE IN QUANTITY

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During the Base Year, the Government may increase the quantity of items in the CLIN Schedule at the unit price specified therein.

In any Option Year, the Government may increase the quantity of items at a unit price equal to then prevailing commercial price, or the lowest price paid by the Government under contracts, whichever is lower.

The Contracting Officer may exercise the option for an increase in quantity by written notice to the Contractor at any time period within the contract period of performance. Delivery terms of the added items shall continue at the same rate as the like items called for under the contract, unless the parties otherwise agree.

8.27 SHIPPING – F.O.B. DESTINATION

(a) The term “f.o.b. destination,” as used in this clause, means --

(1) Free of expense to the Government, on board the carrier’s conveyance, at a specified delivery point where the consignee’s facility (plant, warehouse, store, lot, or other location to which shipment can be made) is located; and

(2) Supplies shall be delivered to the destination consignee’s wharf (if destination is a port city and supplies are for export), warehouse unloading platform, or receiving dock, at the expense of the Contractor. The Government shall not be liable for any delivery, storage, demurrage, accessorial, or other charges involved before the actual delivery (or “constructive placement” as defined in carrier tariffs) of the supplies to the destination, unless such charges are caused by an act or order of the Government acting in its contractual capacity. If rail carrier is used, supplies shall be delivered to the specified unloading platform of the consignee. If motor carrier (including “piggyback”) is used, supplies shall be delivered to truck tailgate at the unloading platform of the consignee, except when the supplies delivered meet the requirements of Item 568 of the National Motor Freight Classification for “heavy or bulky freight.” When supplies meeting the requirements of the referenced Item 568 are delivered, unloading (including movement to the tailgate) shall be performed by the consignee, with assistance from the truck driver, if requested. If the contractor uses rail carrier or freight forwarded for less than carload shipments, the contractor shall ensure that the carrier will furnish tailgate delivery, when required, if transfer to truck is required to complete delivery to consignee.

(b) The Contractor shall --

- (1) (i) Pack and mark the shipment to comply with contract specifications; or
- (ii) In the absence of specifications, prepare the shipment in conformance with carrier requirements;
- (2) Prepare and distribute commercial bills of lading;

(3) Deliver the shipment in good order and condition to the point of delivery specified in the contract;

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- (4) Be responsible for any loss of and/or damage to the goods occurring before receipt of the shipment by the consignee at the delivery point specified in the contract;
- (5) Furnish a delivery schedule and designate the mode of delivering carrier; and
- (6) Pay and bear all charges to the specified point of delivery.

8.28 MODIFICATIONS TO THE CONTRACT

Any changes to the contract and its attachments shall be issued in writing by the Contracting Officer utilizing a Government Standard Form 30, "Amendment of Solicitation/Modification of Contract" (SF 30). For purposes of this section, "Administrative change" means a unilateral contract change, made in writing by the Government, that does not affect the substantive rights of the parties (e.g., a change in the paying office or the appropriation data).

8.29 MODIFICATIONS

Modifications may be of two types:

a) Bilateral. A bilateral modification is a contract modification that is signed by the contractor and the contracting officer. Bilateral modifications are used to --

- (1) Make negotiated equitable adjustments resulting from the issuance of a change order;
- (2) Reflect other agreements of the parties modifying the terms of contracts.

(b) Unilateral. A unilateral modification is a contract modification that is signed only by the contracting officer. Unilateral modifications are used, for example, to --

- (1) Make administrative changes;
- (2) Make changes authorized by other clauses
- (3) Issue termination notices.

8.30 VERSION UPGRADING/ENGINEERING CHANGES

The Government reserves the right to modify this contract—

- a. when a release of the software or a change to the existing hardware containing new features, functionality and/or performance improvements that would enable the existing software and/or hardware configuration to perform to the level of the next version of the software and/or hardware configuration and is designed to replace the older software and/or hardware version of the same product and/or extend the useful life of that product;

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b. when product engineering changes need to be made as determined by mutual agreement of the parties to either comply with Agency requirements or enhance mission requirements.

In both circumstances, both parties shall negotiate these changes and any resulting contract price adjustments shall be made to the contract.

8.31 PRESS/NEWS RELEASE

The vendor shall not make any press/news release pertaining to this procurement without prior Government approval and only in coordination with the Government.

8.32 52.224-3 PRIVACY TRAINING – ALTERNATE I (DEVIATION 17-03, REVISION 2)

(a) Definition. As used in this clause, personally identifiable information means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. (See Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource).

(b) The Contractor shall ensure that initial privacy training, and annual privacy training thereafter, is completed by contractor employees who—

(1) Have access to a system of records;

(2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information on behalf of an agency; or

(3) Design, develop, maintain, or operate a system of records (see also FAR subpart 24.3).

(c) The contracting agency will provide initial privacy training, and annual privacy training thereafter, to Contractor employees for the duration of this contract. Contractor employees shall satisfy this requirement by completing Privacy at DHS: Protecting Personal Information accessible at <http://www.dhs.gov/dhs-security-and-training-requirements-contractors>. Training shall be completed within 30 days of contract award and be completed on an annual basis thereafter not later than October 31st of each year.

(d) The Contractor shall maintain and, upon request, provide documentation of completion of privacy training to the Contracting Officer.

(e) The Contractor shall not allow any employee access to a system of records, or permit any employee to create, collect, use, process, store, maintain, disseminate, disclose, dispose or otherwise handle personally identifiable information, or to design, develop, maintain, or operate

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a system of records unless the employee has completed privacy training, as required by this clause.

(f) The substance of this clause, including this paragraph (f), shall be included in all subcontracts under this contract, when subcontractor employees will—

- (1) Have access to a system of records;
- (2) Create, collect, use, process, store, maintain, disseminate, disclose, dispose, or otherwise handle personally identifiable information; or
- (3) Design, develop, maintain, or operate a system of records.

(End of clause)

8.33 HSAR 3052.204-71 CONTRACTOR EMPLOYEE ACCESS (JULY 2023) ALTERNATE II

(a) Controlled Unclassified Information (CUI) is any information the Government creates or possesses, or an entity creates or possesses for or on behalf of the Government (other than classified information) that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls. This definition includes the following CUI categories and subcategories of information:

- (1) Chemical-terrorism Vulnerability Information (CVI) as defined in 6 CFR part 27, “Chemical Facility Anti-Terrorism Standards,” and as further described in supplementary guidance issued by an authorized official of the Department of Homeland Security (including the Revised Procedural Manual “Safeguarding Information Designated as Chemical-Terrorism Vulnerability Information” dated September 2008);
- (2) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (title XXII, subtitle B of the Homeland Security Act of 2002 as amended through Pub. L. 116-283), PCII’s implementing regulations (6 CFR part 29), the PCII Program Procedures Manual, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security, the PCII Program Manager, or a PCII Program Manager Designee;
- (3) Sensitive Security Information (SSI) as defined in 49 CFR part 1520, “Protection of Sensitive Security Information,” as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or designee), including Department of Homeland Security MD 11056.1, “Sensitive Security Information (SSI)” and, within the Transportation Security Administration, TSA MD 2810.1, “SSI Program”;

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(4) Homeland Security Agreement Information means information the Department of Homeland Security receives pursuant to an agreement with State, local, Tribal, territorial, or private sector partners that is required to be protected by that agreement. The Department receives this information in furtherance of the missions of the Department, including, but not limited to, support of the Fusion Center Initiative and activities for cyber information sharing consistent with the Cybersecurity Information Sharing Act of 2015;

(5) Homeland Security Enforcement Information means unclassified information of a sensitive nature lawfully created, possessed, or transmitted by the Department of Homeland Security in furtherance of its immigration, customs, and other civil and criminal enforcement missions, the unauthorized disclosure of which could adversely impact the mission of the Department;

(6) International Agreement Information means information the Department of Homeland Security receives that is required to be protected by an information sharing agreement or arrangement with a foreign government, an international organization of governments or any element thereof, an international or foreign public or judicial body, or an international or foreign private or non-governmental organization;

(7) Information Systems Vulnerability Information (ISVI) means:

(i) Department of Homeland Security information technology (IT) systems data revealing infrastructure used for servers, desktops, and networks; applications name, version, and release; switching, router, and gateway information; interconnections and access methods; and mission or business use/ need. Examples of ISVI are systems inventories and enterprise architecture models. Information pertaining to national security systems and eligible for classification under Executive Order 13526 will be classified as appropriate; and/or

(ii) Information regarding developing or current technology, the release of which could hinder the objectives of the Department, compromise a technological advantage or countermeasure, cause a denial of service, or provide an adversary with sufficient information to clone, counterfeit, or circumvent a process or system;

(8) Operations Security Information means Department of Homeland Security information that could be collected, analyzed, and exploited by a foreign adversary to identify intentions, capabilities, operations, and vulnerabilities that threaten operational security for the missions of the Department;

(9) Personnel Security Information means information that could result in physical risk to Department of Homeland Security personnel or other individuals whom the Department is responsible for protecting;

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(10) Physical Security Information means reviews or reports illustrating or disclosing facility infrastructure or security vulnerabilities related to the protection of Federal buildings, grounds, or property. For example, threat assessments, system security plans, contingency plans, risk management plans, business impact analysis studies, and certification and accreditation documentation;

(11) Privacy Information includes both Personally Identifiable Information (PII) and Sensitive Personally Identifiable Information (SPII). PII refers to information that can be used to distinguish or trace an individual's identity, either alone, or when combined with other information that is linked or linkable to a specific individual; and SPII is a subset of PII that if lost, compromised, or disclosed without authorization could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual. To determine whether information is PII, DHS will perform an assessment of the specific risk that an individual can be identified using the information with other information that is linked or linkable to the individual. In performing this assessment, it is important to recognize that information that is not PII can become PII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to the individual.

(i) Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

(ii) Multiple pieces of information may present an increased risk of harm to the individual when combined, posing an increased risk of harm to the individual. SPII may also consist of any grouping of information that contains an individual's name or other unique identifier plus one or more of the following elements:

(A) Truncated SSN (such as last 4 digits);

(B) Date of birth (month, day, and year);

(C) Citizenship or immigration status;

(D) Ethnic or religious affiliation;

(E) Sexual orientation;

(F) Criminal history;

(G) Medical information; and

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(H) System authentication information, such as mother's birth name, account passwords, or personal identification numbers (PINs).

(iii) Other PII that may present an increased risk of harm to the individual depending on its context, such as a list of employees and their performance ratings or an unlisted home address or phone number. The context includes the purpose for which the PII was collected, maintained, and used. This assessment is critical because the same information in different contexts can reveal additional information about the impacted individual.

(b) Information Resources means information and related resources, such as personnel, equipment, funds, and information technology.

(c) Contractor employees working on this contract must complete such forms as may be necessary for security or other reasons, including the conduct of background investigations to determine suitability. Completed forms shall be submitted as directed by the Contracting Officer. Upon the Contracting Officer's request, the Contractor's employees shall be fingerprinted or subject to other investigations as required. All Contractor employees requiring recurring access to government facilities or access to CUI or information resources are required to have a favorably adjudicated background investigation prior to commencing work on this contract unless this requirement is waived under departmental procedures.

(d) The Contracting Officer may require the Contractor to prohibit individuals from working on the contract if the Government deems their initial or continued employment contrary to the public interest for any reason, including, but not limited to, carelessness, insubordination, incompetence, or security concerns.

(e) Work under this contract may involve access to CUI. The Contractor shall access and use CUI only for the purpose of furnishing advice or assistance directly to the Government in support of the Government's activities, and shall not disclose, orally or in writing, CUI for any other purpose to any person unless authorized in writing by the Contracting Officer. For those Contractor employees authorized to access CUI, the Contractor shall ensure that these persons receive initial and refresher training concerning the protection and disclosure of CUI. Initial training shall be completed within 60 days of contract award and refresher training shall be completed every 2 years thereafter.

(f) The Contractor shall include this clause in all subcontracts at any tier where the subcontractor may have access to government facilities, CUI, or information resources.

(g) Each individual employed under the contract shall be a citizen of the United States of America, or an alien who has been lawfully admitted for permanent residence as evidenced by a

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Permanent Resident Card (USCIS I-551). Any exceptions must be approved by the Department's Chief Security Officer or designee.

(h) Contractors shall identify in their proposals, the names and citizenship of all non-U.S. citizens proposed to work under the contract. Any additions or deletions of non-U.S. citizens after contract award shall also be reported to the Contracting Officer.

(End of clause)

8.34 HSAR 3052.204-72 SAFEGUARDING OF CONTROLLED UNCLASSIFIED INFORMATION (JULY 2023)

(a) Definitions. As used in this clause--

Adequate Security means security protections commensurate with the risk resulting from the unauthorized access, use, disclosure, disruption, modification, or destruction of information. This includes ensuring that information hosted on behalf of an agency and information systems and applications used by the agency operate effectively and provide appropriate confidentiality, integrity, and availability protections through the application of cost-effective security controls.

Controlled Unclassified Information (CUI) is any information the Government creates or possesses, or an entity creates or possesses for or on behalf of the Government (other than classified information) that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls. This definition includes the following CUI categories and subcategories of information:

(1) Chemical-terrorism Vulnerability Information (CVI) as defined in 6 CFR part 27, "Chemical Facility Anti-Terrorism Standards," and as further described in supplementary guidance issued by an authorized official of the Department of Homeland Security (including the Revised Procedural Manual "Safeguarding Information Designated as Chemical-Terrorism Vulnerability Information" dated September 2008);

(2) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (title XXII, subtitle B of the Homeland Security Act of 2002 as amended through Public Law 116-283), PCII's implementing regulations (6 CFR part 29), the PCII Program Procedures Manual, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security, the PCII Program Manager, or a PCII Program Manager Designee;

(3) Sensitive Security Information (SSI) as defined in 49 CFR part 1520, "Protection of Sensitive Security Information," as amended, and any supplementary guidance officially

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communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or designee), including Department of Homeland Security MD 11056.1, “Sensitive Security Information (SSI)” and, within the Transportation Security Administration, TSA MD 2810.1, “SSI Program”;

(4) Homeland Security Agreement Information means information the Department of Homeland Security receives pursuant to an agreement with State, local, Tribal, territorial, or private sector partners that is required to be protected by that agreement. The Department receives this information in furtherance of the missions of the Department, including, but not limited to, support of the Fusion Center Initiative and activities for cyber information sharing consistent with the Cybersecurity Information Sharing Act of 2015;

(5) Homeland Security Enforcement Information means unclassified information of a sensitive nature lawfully created, possessed, or transmitted by the Department of Homeland Security in furtherance of its immigration, customs, and other civil and criminal enforcement missions, the unauthorized disclosure of which could adversely impact the mission of the Department;

(6) International Agreement Information means information the Department of Homeland Security receives that is required to be protected by an information sharing agreement or arrangement with a foreign government, an international organization of governments or any element thereof, an international or foreign public or judicial body, or an international or foreign private or non-governmental organization;

(7) Information Systems Vulnerability Information (ISVI) means:

(i) Department of Homeland Security information technology (IT) systems data revealing infrastructure used for servers, desktops, and networks; applications name, version, and release; switching, router, and gateway information; interconnections and access methods; and mission or business use/need. Examples of ISVI are systems inventories and enterprise architecture models. Information pertaining to national security systems and eligible for classification under Executive Order 13526 will be classified as appropriate; and/or

(ii) Information regarding developing or current technology, the release of which could hinder the objectives of the Department, compromise a technological advantage or countermeasure, cause a denial of service, or provide an adversary with sufficient information to clone, counterfeit, or circumvent a process or system;

(8) Operations Security Information means Department of Homeland Security information that could be collected, analyzed, and exploited by a foreign adversary to identify intentions,

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capabilities, operations, and vulnerabilities that threaten operational security for the missions of the Department;

(9) Personnel Security Information means information that could result in physical risk to Department of Homeland Security personnel or other individuals whom the Department is responsible for protecting;

(10) Physical Security Information means reviews or reports illustrating or disclosing facility infrastructure or security vulnerabilities related to the protection of Federal buildings, grounds, or property. For example, threat assessments, system security plans, contingency plans, risk management plans, business impact analysis studies, and certification and accreditation documentation;

(11) Privacy Information includes both Personally Identifiable Information (PII) and Sensitive Personally Identifiable Information (SPII). PII refers to information that can be used to distinguish or trace an individual's identity, either alone, or when combined with other information that is linked or linkable to a specific individual; and SPII is a subset of PII that if lost, compromised, or disclosed without authorization could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual. To determine whether information is PII, the DHS will perform an assessment of the specific risk that an individual can be identified using the information with other information that is linked or linkable to the individual. In performing this assessment, it is important to recognize that information that is not PII can become PII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to the individual.

(i) Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

(ii) Multiple pieces of information may present an increased risk of harm to the individual when combined, posing an increased risk of harm to the individual. SPII may also consist of any grouping of information that contains an individual's name or other unique identifier plus one or more of the following elements:

(A) Truncated SSN (such as last 4 digits);

(B) Date of birth (month, day, and year);

(C) Citizenship or immigration status;

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(D) Ethnic or religious affiliation;

(E) Sexual orientation;

(F) Criminal history;

(G) Medical information; and

(H) System authentication information, such as mother's birth name, account passwords, or personal identification numbers (PINs).

(iii) Other PII that may present an increased risk of harm to the individual depending on its context, such as a list of employees and their performance ratings or an unlisted home address or phone number. The context includes the purpose for which the PII was collected, maintained, and used. This assessment is critical because the same information in different contexts can reveal additional information about the impacted individual.

Federal information means information created, collected, processed, maintained, disseminated, disclosed, or disposed of by or for the Federal Government, in any medium or form.

Federal information system means an information system used or operated by an agency or by a Contractor of an agency or by another organization on behalf of an agency.

Handling means any use of controlled unclassified information, including but not limited to marking, safeguarding, transporting, disseminating, re-using, storing, capturing, and disposing of the information.

Incident means an occurrence that --

(1) Actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or

(2) Constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

Information Resources means information and related resources, such as personnel, equipment, funds, and information technology.

Information Security means protecting information and information systems from unauthorized access, use, disclosure, disruption, modification, or destruction in order to provide --

(1) Integrity, which means guarding against improper information modification or destruction, and includes ensuring

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information nonrepudiation and authenticity;

(2) Confidentiality, which means preserving authorized restrictions on access and disclosure, including means for protecting personal privacy and proprietary information; and

(3) Availability, which means ensuring timely and reliable access to and use of information.

Information System means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

(b) Handling of Controlled Unclassified Information. (1) Contractors and subcontractors must provide adequate security to protect CUI from unauthorized access and disclosure. Adequate security includes compliance with DHS policies and procedures in effect at the time of contract award. These policies and procedures are accessible at <https://www.dhs.gov/dhssecurity-and-training-requirementscontractors>.

(2) The Contractor shall not use or redistribute any CUI handled, collected, processed, stored, or transmitted by the Contractor except as specified in the contract.

(3) The Contractor shall not maintain SPII in its invoicing, billing, and other recordkeeping systems maintained to support financial or other administrative functions. It is acceptable to maintain in these systems the names, titles, and contact information for the Contracting Officer's Representative (COR) or other government personnel associated with the administration of the contract, as needed.

(4) Any government data provided, developed, or obtained under the contract, or otherwise under the control of the Contractor, shall not become part of the bankruptcy estate in the event a Contractor and/or subcontractor enters bankruptcy proceedings.

(c) Incident Reporting Requirements.

(1) Contractors and subcontractors shall report all known or suspected incidents to the Component Security Operations Center (SOC) in accordance with Attachment F, Incident Response, to DHS Policy Directive 4300A Information Technology System Security Program, Sensitive Systems. If the Component SOC is not available, the Contractor shall report to the DHS Enterprise SOC. Contact information for the DHS Enterprise SOC is accessible at <https://www.dhs.gov/dhs-security-and-trainingrequirements-contractors>. Subcontractors are required to notify the prime Contractor that it has reported a known or suspected incident to the Department. Lower tier subcontractors are required to likewise notify their higher tier subcontractor, until the prime contractor is reached. The Contractor shall also notify the Contracting Officer and COR using the contact information identified in the contract. If the report is made by phone, or the email address for the Contracting Officer or COR is not

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immediately available, the Contractor shall contact the Contracting Officer and COR immediately after reporting to the Component or DHS Enterprise SOC.

(2) All known or suspected incidents involving PII or SPII shall be reported within 1 hour of discovery. All other incidents shall be reported within 8 hours of discovery.

(3) CUI transmitted via email shall be protected by encryption or transmitted within secure communications systems. CUI shall be transmitted using a FIPS 140-2/140-3 Security Requirements for Cryptographic Modules validated cryptographic module identified on <https://csrc.nist.gov/projects/cryptographic-module-validation-program/validated-modules>. When this is impractical or unavailable, for Federal information systems only, CUI may be transmitted over regular email channels. When using regular email channels, Contractors and subcontractors shall not include any CUI in the subject or body of any email. The CUI shall be included as a password-protected attachment with the password provided under separate cover, including as a separate email. Recipients of CUI information will comply with any email restrictions imposed by the originator.

(4) An incident shall not, by itself, be interpreted as evidence that the Contractor or Subcontractor has failed to provide adequate information security safeguards for CUI or has otherwise failed to meet the requirements of the contract.

(5) If an incident involves PII or SPII, in addition to the incident reporting guidelines in Attachment F, Incident Response, to DHS Policy Directive 4300A Information Technology System Security Program, Sensitive Systems, Contractors shall also provide as many of the following data elements that are available at the time the incident is reported, with any remaining data elements provided within 24 hours of submission of the initial incident report:

(i) Unique Entity Identifier (UEI);

(ii) Contract numbers affected unless all contracts by the company are affected;

(iii) Facility CAGE code if the location of the event is different than the prime Contractor location;

(iv) Point of contact (POC) if different than the POC recorded in the System for Award Management (address, position, telephone, and email);

(v) Contracting Officer POC (address, telephone, and email);

(vi) Contract clearance level;

(vii) Name of subcontractor and CAGE code if this was an incident on a subcontractor network;

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- (viii) Government programs, platforms, or systems involved;
- (ix) Location(s) of incident;
- (x) Date and time the incident was discovered;
- (xi) Server names where CUI resided at the time of the incident, both at the Contractor and subcontractor level;
- (xii) Description of the government PII or SPII contained within the system; and
- (xiii) Any additional information relevant to the incident.

(d) Incident Response Requirements.

(1) All determinations by the Department related to incidents, including response activities, will be made in writing by the Contracting Officer.

(2) The Contractor shall provide full access and cooperation for all activities determined by the Government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of incidents.

(3) Incident response activities determined to be required by the Government may include, but are not limited to, the following:

(i) Inspections;

(ii) Investigations;

(iii) Forensic reviews;

(iv) Data analyses and processing; and

(v) Revocation of the Authority to Operate (ATO), if applicable.

(4) The Contractor shall immediately preserve and protect images of known affected information systems and all available monitoring/packet capture data. The monitoring/packet capture data shall be retained for at least 180 days from submission of the incident report to allow DHS to request the media or decline interest.

(5) The Government, at its sole discretion, may obtain assistance from other Federal agencies and/or third-party firms to aid in incident response activities.

(e) Certificate of Sanitization of Government and Government-Activity-Related Files and Information. Upon the conclusion of the contract by expiration, termination, cancellation, or as

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otherwise indicated in the contract, the Contractor shall return all CUI to DHS and/or destroy it physically and/or logically as identified in the contract unless the contract states that return and/or destruction of CUI is not required. Destruction shall conform to the guidelines for media sanitization contained in NIST SP 800-88, Guidelines for Media Sanitization. The Contractor shall certify and confirm the sanitization of all government and government-activity related files and information. The Contractor shall submit the certification to the COR and Contracting Officer following the template provided in NIST SP 800-88, Guidelines for Media Sanitization, Appendix G.

(f) Other Reporting Requirements. Incident reporting required by this clause in no way rescinds the Contractor's responsibility for other incident reporting pertaining to its unclassified information systems under other clauses that may apply to its contract(s), or as a result of other applicable statutory or regulatory requirements, or other U.S. Government requirements.

(g) Subcontracts. The Contractor shall insert this clause in all subcontracts and require subcontractors to include this clause in all lower tier subcontracts when subcontractor employees will have access to CUI; CUI will be collected or maintained on behalf of the agency by a subcontractor; or a subcontractor information system(s) will be used to process, store, or transmit CUI.

(End of clause)

8.35 HSAR 3052.204-73 NOTIFICATION AND CREDIT MONITORING REQUIREMENTS FOR PERSONALLY IDENTIFIABLE INFORMATION INCIDENTS (JULY 2023)

(a) Definitions. Privacy Information includes both Personally Identifiable Information (PII) and Sensitive Personally Identifiable Information (SPII). PII refers to information that can be used to distinguish or trace an individual's identity, either alone, or when combined with other information that is linked or linkable to a specific individual; and SPII is a subset of PII that if lost, compromised, or disclosed without authorization could result in substantial harm, embarrassment, inconvenience, or unfairness to an individual. To determine whether information is PII, the DHS will perform an assessment of the specific risk that an individual can be identified using the information with other information that is linked or linkable to the individual. In performing this assessment, it is important to recognize that information that is not PII can become PII whenever additional information becomes available, in any medium or from any source, that would make it possible to identify an individual. Certain data elements are particularly sensitive and may alone present an increased risk of harm to the individual.

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(1) Examples of stand-alone PII that are particularly sensitive include: Social Security numbers (SSNs), driver's license or State identification numbers, Alien Registration Numbers (A-numbers), financial account numbers, and biometric identifiers.

(2) Multiple pieces of information may present an increased risk of harm to the individual when combined, posing an increased risk of harm to the individual. SPII may also consist of any grouping of information that contains an individual's name or other unique identifier plus one or more of the following elements:

(i) Truncated SSN (such as last 4 digits);

(ii) Date of birth (month, day, and year);

(iii) Citizenship or immigration status;

(iv) Ethnic or religious affiliation;

(v) Sexual orientation;

(vi) Criminal history;

(vii) Medical information; and

(viii) System authentication information, such as mother's birth name, account passwords, or personal identification numbers (PINs).

(3) Other PII that may present an increased risk of harm to the individual depending on its context, such as a list of employees and their performance ratings or an unlisted home address or

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phone number. The context includes the purpose for which the PII was collected, maintained, and used. This assessment is critical because the same information in different contexts can reveal additional information about the impacted individual.

(b) PII and SPII Notification Requirements.

(1) No later than 5 business days after being directed by the Contracting Officer, or as otherwise required by applicable law, the Contractor shall notify any individual whose PII or SPII was either under the control of the Contractor or resided in an information system under control of the Contractor at the time the incident occurred. The method and content of any notification by the Contractor shall be coordinated with, and subject to prior written approval by, the Contracting Officer. The Contractor shall not proceed with notification unless directed in writing by the Contracting Officer.

(2) All determinations by the Department related to notifications to affected individuals and/or Federal agencies and related services (e.g., credit monitoring) will be made in writing by the Contracting Officer.

(3) Subject to government analysis of the incident and direction to the Contractor regarding any resulting notification, the notification method may consist of letters to affected individuals sent by first-class mail, electronic means, or general public notice, as approved by the Government. Notification may require the Contractor's use of address verification and/or address location services. At a minimum, the notification shall include:

(i) A brief description of the incident;

(ii) A description of the types of PII or SPII involved;

(iii) A statement as to whether the PII or SPII was encrypted or protected by other means;

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- (iv) Steps individuals may take to protect themselves;
 - (v) What the Contractor and/or the Government are doing to investigate the incident, mitigate the incident, and protect against any future incidents; and
 - (vi) Information identifying who individuals may contact for additional information.
- (c) Credit Monitoring Requirements. The Contracting Officer may direct the Contractor to:
- (1) Provide notification to affected individuals as described in paragraph (b).
 - (2) Provide credit monitoring services to individuals whose PII or SPII was under the control of the Contractor or resided in the information system at the time of the incident for a period beginning the date of the incident and extending not less than 18 months from the date the individual is notified. Credit monitoring services shall be provided from a company with which the Contractor has no affiliation. At a minimum, credit monitoring services shall include:
 - (i) Triple credit bureau monitoring;
 - (ii) Daily customer service;
 - (iii) Alerts provided to the individual for changes and fraud; and
 - (iv) Assistance to the individual with enrollment in the services and the use of fraud alerts.
 - (3) Establish a dedicated call center. Call center services shall include:

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- (i) A dedicated telephone number to contact customer service within a fixed period;
- (ii) Information necessary for registrants/enrollees to access credit reports and credit scores;
- (iii) Weekly reports on call center volume, issue escalation (i.e., those calls that cannot be handled by call center staff and must be resolved by call center management or DHS, as appropriate), and other key metrics;
- (iv) Escalation of calls that cannot be handled by call center staff to call center management or DHS, as appropriate;
- (v) Customized Frequently Asked Questions, approved in writing by the Contracting Officer in coordination with the Component or Headquarters Privacy Officer; and
- (vi) Information for registrants to contact customer service representatives and fraud resolution representatives for credit monitoring assistance.

(End of clause)

8.36 INFORMATION TECHNOLOGY SECURITY AWARENESS TRAINING (JULY 2023)

(a) Applicability. This clause applies to the Contractor, its subcontractors, and Contractor employees (hereafter referred to collectively as “Contractor”). The Contractor shall insert the substance of this clause in all subcontracts.

(b) Security Training Requirements.

(1) All users of Federal information systems are required by Title 5, Code of Federal Regulations, Part 930.301, Subpart C, as amended, to be exposed to security awareness materials annually or whenever system security changes occur, or when the user’s responsibilities change. The Department of Homeland Security (DHS) requires that Contractor employees take an annual Information Technology Security Awareness Training course before accessing sensitive information under the contract. Unless otherwise specified, the training shall be completed within thirty (30) days of contract award and be completed on an annual basis thereafter not later than October 31st of each year. Any new Contractor employees assigned to the contract shall

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complete the training before accessing sensitive information under the contract. The training is accessible at <http://www.dhs.gov/dhs-security-and-training-requirements-contractors>. The Contractor shall maintain copies of training certificates for all Contractor and subcontractor employees as a record of compliance. Unless otherwise specified, initial training certificates for each Contractor and subcontractor employee shall be provided to the Contracting Officer's Representative (COR) not later than thirty (30) days after contract award. Subsequent training certificates to satisfy the annual training requirement shall be submitted to the COR via e-mail notification not later than October 31st of each year. The e-mail notification shall state the required training has been completed for all Contractor and subcontractor employees.

(2) The DHS Rules of Behavior apply to every DHS employee, Contractor and subcontractor that will have access to DHS systems and sensitive information. The DHS Rules of Behavior shall be signed before accessing DHS systems and sensitive information. The DHS Rules of Behavior is a document that informs users of their responsibilities when accessing DHS systems and holds users accountable for actions taken while accessing DHS systems and using DHS Information Technology resources capable of inputting, storing, processing, outputting, and/or transmitting sensitive information. The DHS Rules of Behavior is accessible at <http://www.dhs.gov/dhs-security-and-training-requirements-contractors>. Unless otherwise specified, the DHS Rules of Behavior shall be signed within thirty (30) days of contract award. Any new Contractor employees assigned to the contract shall also sign the DHS Rules of Behavior before accessing DHS systems and sensitive information. The Contractor shall maintain signed copies of the DHS Rules of Behavior for all Contractor and subcontractor employees as a record of compliance. Unless otherwise specified, the Contractor shall e-mail copies of the signed DHS Rules of Behavior to the COR not later than thirty (30) days after contract award for each employee. The DHS Rules of Behavior will be reviewed annually, and the COR will provide notification when a review is required.

(End of clause)